

STATE OF NEW YORK

3882--A

2025-2026 Regular Sessions

IN SENATE

January 30, 2025

Introduced by Sen. HINCHEY -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to area speed limits

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "area speed limits act".

3 § 2. Section 1643 of the vehicle and traffic law, as amended by chap-
4 ter 496 of the laws of 2022, is amended to read as follows:

5 § 1643. Speed limits on highways in cities and villages. The legisla-
6 tive body of any city or village with respect to highways (which term
7 for the purposes of this section shall include private roads open to
8 public motor vehicle traffic) in such city or village, other than state
9 highways maintained by the state on which the department of transporta-
10 tion shall have established higher or lower speed limits than the statu-
11 tory fifty-five miles per hour speed limit as provided in section
12 sixteen hundred twenty of this title, or on which the department of
13 transportation shall have designated that such city or village shall not
14 establish any maximum speed limit as provided in section sixteen hundred
15 twenty-four of this title, subject to the limitations imposed by section
16 sixteen hundred eighty-four of this title may by local law, ordinance,
17 order, rule or regulation establish maximum speed limits at which vehi-
18 cles may proceed within such city or village, within designated areas of
19 such city or village or on or along designated highways within such city
20 or village higher or lower than the fifty-five miles per hour maximum
21 statutory limit. No such speed limit applicable throughout such city or
22 village or within designated areas of such city or village shall be
23 established at less than twenty-five miles per hour; except that in the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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city of Long Beach, in the county of Nassau, speed limits may be established at not less than fifteen miles per hour on any portion of the following highways in such city: Cleveland avenue, Harding avenue, Mitchell avenue, Belmont avenue, Atlantic avenue, Coolidge avenue, Wilson avenue and Taft avenue. No such speed limit applicable on or along designated highways within such city or village shall be established at less than twenty-five miles per hour, except that school speed limits may be established at not less than fifteen miles per hour, for a distance not to exceed one thousand three hundred twenty feet, on a highway passing a school building, entrance or exit of a school abutting on the highway and except that within the cities of Buffalo and Rochester speed limits may be established at not less than fifteen miles per hour for any portion of a highway within a city park. ~~[No speed limits shall be established pursuant to the provisions of this section except in accordance with the engineering considerations and factors for speed limits set forth in the manual and specifications for a uniform system of traffic control devices maintained by the commissioner of transportation pursuant to section sixteen hundred eighty of this title, as such manual and specifications may be amended from time to time, certified by a licensed professional engineer who specializes in traffic operations.]~~

§ 3. Section 1662-a of the vehicle and traffic law, as amended by chapter 496 of the laws of 2022, is amended to read as follows:

§ 1662-a. Speed limits in certain towns. The town board of any suburban town governed pursuant to article three-A of the town law and the town board of any other town having a population exceeding fifty thousand, and the town board of any other town that has adopted a local law authorizing itself to set speed limits pursuant to this section, with respect to highways (which term for the purposes of this section shall include private roads open to public motor vehicle traffic) in such towns outside any village, other than state highways maintained by the state on which the department of transportation shall have established higher or lower speed limits than the statutory fifty-five miles per hour speed limit as provided in section sixteen hundred twenty of this title, or on which the department of transportation shall have designated that such towns shall not establish any maximum speed limit as provided in section sixteen hundred twenty-four of this title, subject to the limitations imposed by section sixteen hundred eighty-four of this title may by local law, ordinance, order, rule or regulation establish maximum speed limits at which vehicles may proceed within such towns, within designated areas of such towns or on or along designated highways within such towns lower than the fifty-five miles per hour maximum statutory limit. No such speed limit applicable throughout such towns or within designated areas of such towns shall be established at less than twenty-five miles per hour, except that in the town of Hempstead speed limits may be established at not less than fifteen miles per hour on any portion of a highway in the community known as Point Lookout and on all or any portion of the following highways in the community known as Lido Beach: Ocean Boulevard, Allevard Street, Bath Street, Buxton Street, Cheltenham Street, Pinehurst Street, Harrogate Street, Matlock Street, Nantwick Street, Biarritz Street, Royat Street, Luchon Street, Woodhail Street, Leamington Street, Saratoga Street, Kensington Street, and Prescott Street; provided, however, that no such speed limit in such town may be established unless a majority of the residents of each such community file a petition with the town board of such town requesting such speed limit. No such speed limit applicable on or along designated highways within such towns shall be established at less than

1 twenty-five miles per hour, except that school speed limits may be
2 established at not less than fifteen miles per hour, for a distance not
3 to exceed one thousand three hundred twenty feet, on a highway passing a
4 school building, entrance or exit of a school abutting on the highway,
5 and except further that in the town of Hempstead speed limits may be
6 established at not less than fifteen miles per hour on any portion of a
7 highway in the communities known as Point Lookout and Lido Beach;
8 provided, however, that no such speed limit in such town may be estab-
9 lished unless a majority of the residents of each such community file a
10 petition with the town board of such town requesting such speed limit.

11 ~~[No speed limits shall be established pursuant to the provisions of this~~
12 ~~section except in accordance with the engineering considerations and~~
13 ~~factors for speed limits set forth in the manual and specifications for~~
14 ~~a uniform system of traffic control devices maintained by the commis-~~
15 ~~sioner of transportation pursuant to section sixteen hundred eighty of~~
16 ~~this title, as such manual and specifications may be amended from time~~
17 ~~to time, certified by a licensed professional engineer who specializes~~
18 ~~in traffic operations.]~~

19 § 4. This act shall take effect immediately.